



Regence |

P.O. Box 21267
Seattle, WA 98111-3267

RADIANTCARE PHYSICIANS PLLC
4525 3RD AVE SE - STE 100
LACEY, WA. 98503-1010

April 04, 2022

Replacement addendum

Dear RADIANTCARE PHYSICIANS PLLC:

Thank you for the care you provide to your patients—our members. The enclosed document is for your information only. **No action is required by you.**

The replacement addendum attached is effective July 1, 2022. It includes additional Washington state regulatory requirements in the following sections:

- Compliance with Policies and Guidelines—Section 4.2
- Provider's Right to Audit—Section 4.13

Please place the enclosed addendum in your file and remove the previous version. There are no other changes to your agreement documents or reimbursement rates, and no other action is required by you.

The Contact Us section of our provider website, **regence.com**, includes information about Availity Essentials, **availity.com**, and other resources for your office.

Sincerely,

A handwritten signature in black ink, appearing to read "Eric Hales".

Eric Hales
Vice President, Network Management

**AMENDMENT TO
REGENCE BLUESHIELD
PARTICIPATING AGREEMENT**

THIS AMENDMENT, effective **July 01, 2022**, hereby amends the following agreements (collectively, the "Agreements" and each individually, the "Agreement") and any and all amendments, addenda, attachments or exhibits thereto by and between **Regence BlueShield** (Regence or as otherwise defined in the Agreement and hereafter referred to as "Regence") and **Provider**:

Participating Ancillary Provider Agreement
Participating Hospital Agreement
Participating Professional Services Agreement

All references herein to "Provider" shall mean "Physician or Other Health Care Professional," "Provider," "Practitioner," "Medical Group," "Medical Group Provider," "Hospital," "Facility," "Dental Clinic," "Dental Group," "Dental Provider," or as otherwise defined in the Agreement(s).

RECITALS

WHEREAS, Regence and Provider entered into the Agreement, wherein Provider agreed to provide Covered Services to Members; and

WHEREAS, Regence and Provider agree to continue their contract to provide health care services to Members, and amend the Agreement pursuant to Section 9.1, Amendments with Notice, for the purpose of incorporating the provision set forth below; and

NOW, THEREFORE, in consideration of the foregoing premises and other good and valuable consideration, the receipt and sufficiency of which are hereby acknowledged, the parties agree as follows:

AGREEMENT

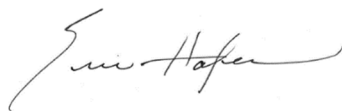
1. The Washington State Addendum is hereby deleted in its entirety and replaced with the enclosed, revised Washington State Addendum.

Any term not defined herein shall have the meaning set forth in the Agreement.

To the extent that there is any conflict between the terms of the Agreement and the terms of this Amendment, the terms of this Amendment will prevail.

Except as expressly amended and supplemented by this Amendment, all other terms and conditions of the Agreement shall remain in full force and effect.

REGENCE BLUESHIELD



Eric Hales
Vice President, Network Management

PARTICIPATING PROFESSIONAL SERVICES AGREEMENT WASHINGTON STATE ADDENDUM

This Addendum to the Participating Professional Services Agreement (the "Agreement") is entered into and made part of the Agreement with **Provider** ("Provider"), to recognize additional provisions that apply to Member Contracts sponsored, issued or administered by, or accessed through Regence that may be subject to regulation under Washington law; and for which Washington laws may control.

Regence and Provider each agree to be bound by the terms and conditions contained in this Addendum. In the event of a conflict or inconsistency between this Addendum and any term or condition contained in the Agreement, this Addendum shall control. This Addendum will be deemed to be updated to incorporate any changes to the laws and regulations referenced herein, effective as of the date of such changes. Except as specifically amended herein, all terms and conditions of the Agreement remain in effect.

The referenced section of the Agreement is deleted in its entirety and replaced with the following:

- 1.7 MEDICALLY NECESSARY or MEDICAL NECESSITY:** Except for services subject to WAC 284-43-7000, "Medically Necessary" or "Medical Necessity" means health care services or supplies that a physician or other health care professional, exercising prudent clinical judgment, would provide to a patient for the purpose of preventing, evaluating, diagnosing, or treating an illness, injury, disease, or its symptoms, and that are (a) in accordance with generally accepted standards of medical practice; (b) clinically appropriate, in terms of type, frequency, extent, site, and duration, and considered effective for the patient's illness, injury, or disease; (c) not primarily for the convenience of the patient, physician, or other health care professional; and (d) not more costly than an alternative service or sequence of services or supplies that are at least as likely to produce equivalent therapeutic or diagnostic results as to the diagnosis or treatment of that patient's illness, injury, or disease. For these purposes, "generally accepted standards of medical practice" means standards that are based on credible scientific evidence published in applicable peer-reviewed medical literature generally recognized by the relevant medical community, physician specialty society recommendations, and the views of physicians and other health care professionals practicing in relevant clinical areas and any other relevant factors. For services subject to WAC 284-43-7000, "Medical Necessity" or "Medically Necessary" shall have the meaning set forth in WAC 284-43-7020.

The referenced section of the Agreement is deleted in its entirety and replaced with the following:

- 3.1 PAYMENT.** Regence or Payor will compensate the Provider for Medically Necessary Covered Services provided to Members in accordance with this Agreement and Regence's or Payor's claims payment policies. Provider will have the right to audit Regence's records related to adjudication of Provider's claims. The audit may be performed either by the Provider or by an independent auditor selected by the Provider. Provider or the independent auditor will conduct audits during Regence's regular business hours at Regence's office and the audit will be limited to records necessary to perform the audit. The Provider will give Regence no less than three (3) business days advance notice of such claims audit and will inform Regence of the claim records to be audited. Regence will have the records for that time period available for the auditors at the time of the audit. Provider or the independent auditor will conduct the audits in a manner that, to the greatest extent possible, avoids disruption of Regence's business affairs and minimizes the burden on Regence. In conducting the audits, Provider or the independent auditor will comply with all laws, statutes, and regulations pertaining to the confidentiality of Member records. Provider or independent auditor will conduct the audit according to Regence's most current external audit guidelines. This Section will survive termination of this Agreement.

The referenced section of the Agreement is deleted in its entirety and replaced with the following:

- 4.2 COMPLIANCE WITH POLICIES AND GUIDELINES.** Provider will comply with rules, guidelines, policies, and procedures, including adherence to Bree Collaborative recommendations where available, whether outlined in this Agreement, or Provider Web Site. To the extent of any

inconsistency between this Agreement and the Provider Web Site, this Agreement shall control. Regence may revise the rules, guidelines, policies, and procedures with sixty (60) days' notice. If Provider objects to a change in rules, guidelines, policies, and procedures on the Provider Web Site, Provider may elect to terminate this Agreement pursuant to Article VII of this Agreement.

- 4.2.1** Regence's process to request an exception to the drug utilization management process can be found on the Provider Web Site.
- 4.2.2** In addition to compliance with other regulation applicable to the provision of virtual care, audio-only telemedicine billing requires advance consent from the Member. Failure to obtain member consent could result in disciplinary action against the Provider.

The referenced section of the Agreement is hereby added its entirety with the following:

4.13.2.5 Provider's Right to Audit. Provider shall have the right to audit Regence's records related to adjudication of Provider's claims pricing. The audit may be performed either by the Provider or by an independent auditor selected by the Provider. Such audits shall be conducted during Regence's regular business hours at Regence's office and shall be limited to records necessary to perform the audit. Provider shall give Regence no less than three (3) business days advance notice of such claims audit and shall inform Regence of the claim records to be audited. Regence shall have the records for that time period available for the auditors at the time of the audit. Such audits shall be conducted in a manner that, to the greatest extension possible, avoids disruption of Regence's business affairs and minimizes the burden on Regence. Audits will comply with all laws, statutes and regulations pertaining to the confidentiality of Member records. Any audit shall be conducted according to Regence's most current external audit guidelines. These rights shall survive termination of this Agreement.

The referenced section of the Agreement is deleted in its entirety and replaced with the following:

4.16 PROVIDER-PATIENT RELATIONSHIP. Providers will maintain the provider-patient relationship with Members. Regence may not in any way preclude or discourage their Providers from informing Members of the care they require, including various treatment options, and whether in their view such care is consistent with Medical Necessity, medical appropriateness, or otherwise covered by the Member Contract. No health carrier may prohibit, discourage, or penalize a Provider otherwise practicing in compliance with the law from advocating on behalf of a Member with a health carrier. Nothing in this section shall be construed to authorize Providers to bind health carriers to pay for any service. No health carrier may preclude or discourage Members or those paying for their coverage from discussing the comparative merits of different health carriers with their providers. This prohibition specifically includes prohibiting or limiting providers participating in those discussions even if critical of a carrier.

The referenced section of the Agreement is deleted in its entirety and replaced with the following:

4.21.1 Member Hold Harmless. Provider hereby agrees that in no event, including, but not limited to, nonpayment by Regence, Regence's insolvency, or breach of this Agreement, will Provider bill, charge, collect a deposit from, seek compensation, remuneration or reimbursement from, or have any recourse against a Member or person acting on their behalf, other than Regence, for services provided pursuant to this Agreement. This provision does not prohibit collection of Deductibles, Coinsurance, Copayments, and/or payment for Non-Covered Services, which have not otherwise been paid by a primary or secondary carrier in accordance with regulatory standards for coordination of benefits, from Members in accordance with the terms of the Member's Member Contract.

The referenced section of the Agreement is deleted in its entirety and replaced with the following:

4.21.2 Continue Providing Services. Provider agrees, in the event of Regence's or Payor's insolvency, to continue to provide Covered Services promised in this Agreement to Members of Regence or Payor under the Provider's care for the duration of the period for which premiums on behalf of the Member were paid to Regence or Payor or until the Member's discharge from inpatient facilities; whichever time is greater. The provision of such services and the payment to Provider for these services will be subject to the applicable terms of this Agreement and on the same basis as those services provided prior to insolvency.

The referenced section of the Agreement is deleted in its entirety and replaced with the following:

4.21.3 Member Contract. Notwithstanding any other provision of this Agreement, nothing in this Agreement shall be construed to modify the rights and benefits contained in the Member Contract.

The referenced section of the Agreement is deleted in its entirety and replaced with the following:

4.21.4 Charges to Members. Provider may not bill the Member for Covered Services, except for Deductibles, Coinsurance or Copayments where Regence or Payor denies payments because the Provider or facility has failed to comply with the terms or conditions of this Agreement. As required by WAC 284-170-421(4), Regence hereby informs Provider that willfully collecting or attempting to collect an amount from a Member knowing that the collection is in violation of this Agreement constitutes a class C felony under RCW 48.80.030(5).

The referenced section of the Agreement is deleted in its entirety and replaced with the following:

4.21.5 Survival of Termination. Provider further agrees that (i) the above provisions will survive termination of this Agreement regardless of the cause giving rise to termination and shall be construed to be for the benefit of the Members, and (ii) this provision supersedes any oral or written contrary agreement now existing or hereafter entered into between the Provider and Member or persons acting on their behalf.

The referenced section of the Agreement is deleted in its entirety and replaced with the following:

4.21.6 Provider Contracts with Other Health Care Professionals. If Provider contracts with other health care providers who agree to provide Covered Services to Members of Regence or Payor with the expectation of receiving payment directly or indirectly from Regence or Payor, such providers must agree to abide by the above provisions.

The referenced section of the Agreement is deleted in its entirety and replaced with the following:

5.3 PROMPT PAYMENT OF CLAIMS. Regence will pay claims as soon as practical, but subject to the following minimum standards: (1) Regence will pay ninety-five percent (95%) of the monthly volume of clean claims within thirty (30) days of receipt by Regence; and (2) Regence will pay or deny ninety-five percent (95%) of the monthly volume of all claims within sixty (60) days of receipt by Regence. For purposes of this Section, a "clean claim" means a claim that has no defect or impropriety, including any lack of any required substantiating documentation, or particular circumstances requiring special treatment that prevent timely payments from being made on the claim in accordance with applicable Washington law. If Regence requires additional information to process a claim, Provider will provide such information at no charge. Once the additional information is received by Regence, Regence will process the claim in accordance with the above standards. Regence will communicate denial of a claim to Provider, including the specific reason why the claim was denied. If the denial is based upon Medical Necessity or similar grounds, then upon Provider's request, Regence will promptly disclose the supporting basis for the decision.

To the extent required by Washington law, Regence or Payor will pay simple interest at the rate of one percent (1%) per month on payable clean claims not paid within sixty-one (61) days of receipt. Such interest will be calculated based on the amount to be paid to Provider for the Covered Services and will be added to Provider's payment without further claim submission from Provider. Notwithstanding the foregoing, neither Regence nor Payor will be subject to interest, penalties, or late fees that may be established by Washington state law for clean claims for Covered Services provided to Members pursuant to a Member Contract with, or on behalf of, the federal government or otherwise pursuant to federal law, including, but not limited to, those under the Federal Employees Health Benefits Program, Medicare, and self-funded health plans.

These prompt payment of claims standards do not apply to claims about which there is substantial evidence of fraud or misrepresentation by Provider or Members or instances where Regence has not been granted reasonable access to information under Provider's control.

The referenced section of the Agreement is deleted in its entirety and replaced with the following:

5.5.1 Overpayments. Regence or Payor may request a refund from Provider of a payment previously made to satisfy a claim within twenty-four (24) months after the date that the payment was made or, in the case of a claim involving the coordination of benefits, within thirty (30) months of such date. Any such request must be in writing and must specify why Regence or Payor believes that Provider owes the refund. In the case of a claim involving the coordination of benefits, the request must include the name and mailing address of the other entity that has primary responsibility for payment of the claim. If Provider fails to contest a refund request in writing to Regence or Payor within thirty (30) days of receiving the request, the request is deemed accepted and Provider must pay the refund within thirty (30) days after the request is deemed accepted. If Provider has not paid the refund within thirty (30) days after the request is deemed accepted, Regence or Payor may recover the amount through an offset to a future claim. The parties agree that this Section does not apply in cases of fraud.

The referenced section of the Agreement is deleted in its entirety and replaced with the following:

5.5.2 Refunds and Adjustments. Provider may request additional payment from Regence or Payor to satisfy a claim within twenty-four (24) months after the date that the claim was denied or payment intended to satisfy the claim was made or, in the case of a claim involving the coordination of benefits, within thirty (30) months of such date. Any such request must be in writing and must specify why Provider believes that Regence or Payor owes the additional payment. In the case of a claim involving the coordination of benefits, the request must include the name and mailing address of any entity that has disclaimed responsibility for payment of the claim. The original claims decision will be final and binding unless Provider requests additional payment within the twenty-four (24) or thirty (30) month time periods, as applicable. The parties agree that this Section does not apply in cases of fraud.

The referenced section of the Agreement is deleted in its entirety and replaced with the following:

8.2 INTERNAL PROVIDER APPEAL PROCESSES. Regence's provider appeal processes ("Provider Dispute Resolution Process") in its entirety are set forth in Attachment D hereto.

The referenced section of the Agreement is deleted in its entirety and replaced with the following:

8.3 POST-APPEAL PROCESSES. Regence's provider appeal processes ("Provider Dispute Resolution Process") in its entirety are set forth in Attachment D hereto.

The referenced section of the Agreement is deleted in its entirety and replaced with the following:

- 9.11 GOVERNING LAW / VENUE.** This Agreement is governed by the laws of the State of Washington, without giving effect to any conflict-of-law principle that would result in the laws of any other jurisdiction governing this Agreement. Any action, suit, or proceeding arising out of the subject matter of this Agreement will be litigated in courts located in King County, Washington. Each party consents and submits to the jurisdiction of any local, state, or federal court located in King County, Washington.